

23STCV01989 23STCV01989

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Case Number: 23STCV01989 Hearing Date: August 3, 2026 Dept: 515

NATURE OF PROCEEDINGS: Hearing on Motion for Leave to Amend Complaint

Plaintiff's Motion for Leave to Amend the
Complaint is granted on the terms stated below.

BACKGROUND

Plaintiff Shelon Douglas (Plaintiff) filed
this action against Molly Waggoner, individually and as trustee of the Waggoner
Family Trust, Jason Waggoner, and Keller Williams Realty, Inc. (Keller),
alleging that the house Plaintiff leased lacked functioning heat and had
hazardous electrical wiring and plumbing, and that the listing published for
the property represented that the residence had central heating when it had
none. (Compl., ¶¶ 9-19; Burt Decl., ¶ 3.)

The causes of action are: (1) Negligence;
Breach of Contract; Tenant Harassment; Unlawful Eviction; and Fraudulent
Misrepresentation.

Plaintiff settled with the Waggoner
defendants; Keller stipulated that the settlement was in good faith, and the
Waggoner defendants were dismissed. (Burt Decl., ¶ 4.) Keller's counsel of
record was declared ineligible to practice by the State Bar, and Keller has not
substituted new counsel. (Burt Decl., ¶ 5.) Keller did not appear at a
scheduled mediation, at a post-mediation status conference, or at the final
status conference, and did not participate in the joint trial readiness
documents. (Burt Decl., ¶ 5.) The Court set an order to show cause re striking Keller's
Answer for failure to obtain counsel. (Burt Decl., ¶ 5.)

Plaintiff filed the Motion for Leave to Amend the Complaint. No opposition was filed.

LEGAL STANDARD

Code of Civil Procedure section 473, subdivision (a)(1) provides in relevant part: "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars" Any judge may allow the amendment of a pleading at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper. (Code Civ. Proc., § 576.)

"The trial court has discretion to allow amendments to the pleadings 'in the furtherance of justice.' [Citation.] This discretion should be exercised liberally in favor of amendments, for judicial policy favors resolution of all disputed matters in the same lawsuit." (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1047 (Kittredge).) Denial is an abuse of discretion where the opposing party was neither misled nor prejudiced by the amendment, and the preferable practice is ordinarily to permit the amendment and leave the parties to test its legal sufficiency in other proceedings. (Id. at p. 1048.) Where the proposed amendment would be futile, leave may properly be withheld as to it. (Foxborough v. Van Atta (1994) 26 Cal.App.4th 217, 230.)

Under rule 3.1324(a) of the California Rules of Court, a motion to amend a pleading before trial must include a copy of the proposed amendment or amended pleading, serially numbered to differentiate it from previous pleadings, and must state what allegations are proposed to be deleted from and added to the previous pleading, identifying each by page, paragraph, and line number. Under rule 3.1324(b), a separate declaration must specify the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and the reasons the request was not made earlier.

ANALYSIS

I. Compliance With Rule 3.1324

The Motion attaches a clean copy of the proposed First Amended Complaint and a redline comparing it with the Complaint; the proposed pleading is serially numbered. (Burt Decl., ¶ 7, Exhs. A, B.) The Motion locates the three proposed revisions at page 13, line 27, and page 14, lines 1 through 2 and 18 through 19, of the proposed pleading. (Mot. at p. 5:14-17.) Those locations correspond to paragraphs 1, 2, and 14 of the prayer. The Motion supplies no paragraph numbers and does not separate deletions from additions, but the Court concludes that the redlines constitute substantial compliance. The supporting declaration states the effect of the amendment, why Plaintiff regards it as necessary, when Plaintiff identified the deficiency in the prayer, and why the request was not made earlier. (Burt Decl., ¶¶ 6-8.) The requirements of rule 3.1324 are met.

II. General and Special Damages

The Complaint demands general damages without stating an amount and special damages according to proof. (Compl., prayer ¶¶ 1-2.) The proposed First Amended Complaint states general damages at \$250,000 and special damages at \$150,000. (Burt Decl., Exh. B, prayer ¶¶ 1-2.) The amendment adds no party, no cause of action, and no factual allegation. (Mot. at p. 5:8-10.)

Trial has not commenced, and Keller filed no opposition. Nothing in the record indicates that the Complaint's prayer misled Keller or that a revision confined to the amount of the compensatory demand would prejudice its defense. (Kittredge, *supra*, 213 Cal.App.3d at p. 1048.) Accordingly, the Motion for Leave to Amend the Complaint is granted as to the revisions to paragraphs 1 and 2 of the prayer.

III. Punitive Damages

The third revision states the amount of punitive damages at \$250,000. (Burt Decl., Exh. B, prayer ¶ 14.) Civil Code section 3295, subdivision (e), provides that no claim for exemplary damages shall state an amount or amounts. A plaintiff seeking punitive damages on a default judgment reserves them by serving the statement described in Code of

Civil Procedure section 425.115, subdivision (b), service of which is deemed compliance with sections 425.10 and 580 of that code and with Civil Code section 3295. (Code Civ. Proc., § 425.115, subd. (d).) Accordingly, leave to amend does not extend to the revision to paragraph 14 of the prayer.

CONCLUSION

For the reasons stated above, Plaintiff's

Motion for Leave to Amend the Complaint is granted on the following terms.

Within 20 days, Plaintiff shall file and serve a First Amended Complaint identical to Exhibit B to the Declaration of Steven W. Burt except that the words "in the amount of two hundred fifty thousand dollars (\$250,000.00)" are omitted from paragraph 14 of the prayer.